

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 421 of 2020

Applicant :- Om Prakash Sahani

Opposite Party :- Sri B.K. Singh, Executive Engineer, Urban Electrical Distribution Unit-2

Counsel for Applicant :- Manoj Kumar Rajvanshi, Vinay Kumar Mishra

Hon'ble Mahesh Chandra Tripathi, J.

Before proceeding in the contempt, let Shri Mehboob Ahmad, who is authorised to take notice on behalf of opposite party, may seek the instruction in the matter.

Let a copy of the contempt application be handed over to Shri Mehboob Ahmad, Advocate during course of the day.

List this matter amongst top ten of the cases on 17.02.2020 showing the name of Shri Mehboob Ahmad, Advocate from the side of opposite party.

Order Date :- 23.1.2020

A. Pandey

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Counsel for Opposite Party :- Mehboob Ahmad

Hon'ble Mahesh Chandra Tripathi, J.

Heard learned counsel for the parties.

Present contempt application has been preferred against the wilful defiance of the interim order dated 10.04.2018 passed in Writ Petition No.8432 of 2018 (Om Prakash Sahani v. State of U.P. & Ors.), which is quoted as under:-

"Learned counsel for the petitioner submitted that the provision for testing defective meter as provided by the U.P. Electricity Supply Code, 2005 has not been followed and therefore the demand raised by the electricity department for a period of 80 months on the basis of a slow meter is not legally sustainable.

Learned Standing Counsel has accepted notice on behalf of respondent no.1 and Sri Mahboob Ahmad has accepted notice on behalf of respondents 4 and 5. They pray for and are allowed three weeks time to file counter affidavit. One week thereafter shall be for the petitioner to file rejoinder affidavit.

List this petition on 10th May, 2018.

Till the next date of listing, no coercive step shall be taken against the petitioner pursuant to demand raised by the department for the concerned period."

In response to the order dated 23.1.2020, Shri F.A. Ansari, learned counsel for the opposite party has placed the instructions dated 7.2.2020 sent by the Executive Engineer of the department concerned indicating therein that at no point of time the interim order so accorded by the writ Court had ever been flouted. By the interim order the reprieve was accorded only against the demand raised by the electricity department for previous 80 months. Even though the applicant is using electricity unabated but since then he has not deposited even a single penny. As such the authority has no other option except to disrupt the electric supply. The moment he had deposited Rs.9 lacs on 6.12.2019, again the electric supply has been restored. It is also apprised that regarding ongoing use of electricity if the applicant moves appropriate application to the Executive Engineer of the department concerned, definitely the revised bill will be given to the applicant so that no inconvenience be caused to him. The writ petition is pending consideration and the interim order was only for the previous bill, which is of much prior to the interim order. So far as current bill is concerned, there is no restraint order.

The Court has proceeded to examine the record in question and find substance in the contention raised by learned counsel for the opposite party. The interim order was accorded only for previous 80 months and for current use the applicant has to pay bill as per law. As the applicant is inclined to clear the current bill, in order to do substantial justice, let the applicant move appropriate application within ten days for providing bill for the current usage of electricity and in case any such application is moved, the same will be decided and fresh/revised bill be provided to the applicant in accordance with law within further three weeks. So far as other issues are concerned, it is always open to the applicant to press his relief in pending writ petition in question.

The contempt application stands **disposed of** accordingly. Notices, if any, stand discharged.

Order Date :- 17.2.2020
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